

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Morgan Galloway	Team: Squad #08	CCRB Case #: 201705708	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/28/2017 11:30 AM	Location of Incident: Greenpoint Avenue and Borden Avenue	18 Mo. SOL 12/28/2018	Precinct: 108		
Date/Time CV Reported Fri, 07/07/2017 7:08 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/13/2017 3:01 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Janet Ospina	21227	950989	108 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brian Evensen	09854	957569	108 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Janet Ospina	Abuse: Police Officer Janet Ospina threatened to arrest § 87(2)(b)	A . Exonerated
B . POF Janet Ospina	Abuse: Police Officer Janet Ospina drew her gun.	B . Unfounded
C . POF Janet Ospina	Abuse: Police Officer Janet Ospina refused to provide her name and shield number to § 87(2)(b)	C . Unsubstantiated

Case Summary

On June 28, 2017, at 10:45 a.m., § 87(2)(b) was involved in a motor vehicle accident at the intersection of Borden Avenue and Greenpoint Avenue in Queens. § 87(2)(b), § 87(2)(b)'s father, arrived on the scene of the accident with his daughter § 87(2)(b). § 87(2)(b) tried to sit in the vehicle involved in the accident, but was denied access by Police Officer Janet Ospina (108th Precinct) because she had already ordered a tow truck under the DARF program protocol. § 87(2)(b) entered the vehicle and sat in its driver's seat. § 87(2)(b) said PO Ospina told him to get out lest he be arrested (**Allegation A**). PO Ospina allegedly drew her gun (**Allegation B**). § 87(2)(b) asked PO Ospina for her name and shield number twice because he wanted to make a complaint, but she allegedly refused (**Allegation C**). There is no video for the incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) refused mediation § 87(2)(b)
- As of October 10, 2017, no Notice of Claim had been filed regarding this incident (BR 08).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (BR 01).
- PO Ospina has been a member of the NYPD for the past 6 years, and has had two previous CCRB complaints. § 87(2)(g) PO Ospina has never been disciplined pursuant to a CCRB complaint.

Findings and Recommendations

Allegation A: Police Officer Janet Ospina threatened to arrest § 87(2)(b)

It is undisputed that PO Janet Ospina refused to allow § 87(2)(b) to drive the vehicle involved in the accident before the tow truck arrived. It is also undisputed that § 87(2)(b) entered and remained seated in the vehicle despite PO Ospina telling him he could not. In his phone and in-person statements, § 87(2)(b) said he sat down in the vehicle because he suffers from "heel spurs" which make it difficult for him to stand up for long periods of time (BR 03). In his IAB call, he told the investigating officer that he sat down in that car, rather than the one he came in with his daughter, because it was closer; the other car was a block away (BR 09). In each of § 87(2)(b)'s statements, he was very upset about the incident and felt that he had been discriminated against due to his ethnicity. § 87(2)(b) speaks with an accent.

In his telephone statement, § 87(2)(b) stated that PO Janet Ospina and her partner, PO Brian Evensen, moved their patrol car forward in order to block him from leaving and told him to get out of the vehicle or he will be arrested (BR 02). During his in-person interview, § 87(2)(b) said that PO Ospina told him, "Get out, or I will arrest you" while he was seated in the vehicle (BR 03). In § 87(2)(b)'s phone statement, she said that PO Ospina pulled her car up, rolled her window down, and said, "Get out, or I will arrest you." (BR 04) § 87(2)(b)'s son, § 87(2)(b) said in his phone statement that he was ten feet away and could not remember what was said during the incident (BR 05).

In her CCRB interview, PO Ospina said § 87(2)(b) attempted to back out of the spot where the vehicle was waiting to be towed, but she could not remember if he started the car (BR 06). PO Ospina could not recall whether or not she told § 87(2)(b) he would be arrested, and PO Evensen said that neither officer told § 87(2)(b) he would be arrested if he did not exit the vehicle (BR 07). PO Evensen denied that PO Ospina ever pulled the patrol vehicle into a position that would prevent § 87(2)(b) from driving it away. PO Evensen did not see § 87(2)(b) put his keys in the ignition or start the vehicle. PO Ospina admitted she was speaking sternly to § 87(2)(b) through the use of his daughter as a translator because she had a difficult time understanding him through his accent. PO Evensen said they had to yell at him to get out of the car. He said that once he and PO Ospina yelled at him to get out of the car, he exited the vehicle. They never said anything else to him.

When asked whether § 87(2)(b) could have been arrested based on his actions, PO Evensen responded that it would have been lawful to arrest him for either obstruction of governmental administration (OGA) or disobeying a lawful order (BR 07). PO Ospina also said that she was unsure if § 87(2)(b) could have been arrested if he had taken the car under the DARP program, but that he could have been arrested for OGA (BR 06). Under NY CLS Penal § 195.05, the obstruction of governmental administration refers to the “intentional obstruct[ion], impair[ment], or pervers[ion] of the administration of law or other governmental function...”

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b). Therefore it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B: Police Officer Janet Ospina drew her gun.

In § 87(2)(b)'s in-person interview, he said that after he sat in the vehicle waiting to be towed, PO Ospina lurched the patrol vehicle forward in order to block him in (BR 03). He said that she and PO Evensen then got out of the vehicle with their hands on their weapons. § 87(2)(b) was not sure if PO Evensen took his gun out of its holster, but he remembered PO Ospina taking out hers. In § 87(2)(b)'s phone statement, however, she could not recall whether the officers got out of the patrol vehicle and denied that either of them had their hands placed on their weapon or took their weapon out (BR 04).

PO Evensen recalled that § 87(2)(b) was standing directly outside of the vehicle, on the driver's side, with her father (BR 07). § 87(2)(b) and her father were talking to the officers through the patrol car's front driver's side window. Both PO Ospina and PO Evensen recalled that their patrol vehicle was in a position that would not require them to get out of the vehicle to talk to the civilians. The vehicles were parked parallel and facing opposite directions, with their driver's windows facing each other.

Both PO Evensen and PO Ospina denied taking their weapons out (BR 06), and PO Evensen denied that PO Ospina took her weapon out (BR 07). Additionally, PO Evensen stated that he was preparing the accident report and never left the patrol vehicle. PO Evensen denied that § 87(2)(b) was acting belligerently or posing a threat to PO Evensen or his partner. Moreover, PO Ospina said that she was talking to § 87(2)(b) through the translation of his daughter, who remained calm and compliant throughout.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Therefore, it is recommended that **Allegation B** be closed as **unfounded**.

Allegation C: Police Officer Janet Ospina refused to provide her name and shield number to § 87(2)(b)

In § 87(2)(b)'s initial phone statement, he said he asked PO Ospina for her name and shield number two times, but she refused (BR 02). In his in-person interview, § 87(2)(b) elucidated the claim, and said he asked PO Ospina for her name and shield number twice after she yelled at him to get out of the vehicle waiting to be towed. She refused, saying, "Stay away from me! Don't even come next to me!" When he told her he wanted her information in order to make a complaint, she said, "Do whatever you want. Be my guest." § 87(2)(b) said he called the 108th Precinct after he returned home and spoke to a sergeant about filing a complaint (BR 03). In his telephone and in-person statements, he referred to PO Ospina as "Osapina or Pina," but it is unclear how he obtained that name. § 87(2)(b) became uncooperative during the investigation, and was thus unavailable to confirm or deny that her father asked either of the officers for their name and shield number.

In her CCRB interview, PO Ospina said she could not recall whether or not § 87(2)(b) or anyone else at the scene asked her for her name and shield number (BR 06). PO Ospina said § 87(2)(b) was translating everything for her father due to his thick accent. PO Evensen said § 87(2)(b) did not ask him for his name and shield number, and he did not hear § 87(2)(b) ask PO Ospina for hers (BR 07). PO Evensen denied that § 87(2)(b) said he was going to file a complaint. PO Ospina recounted that when she arrived back at the stationhouse to take her meal, the desk sergeant was on the phone with § 87(2)(b). PO Ospina did not know what transpired during this conversation.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Therefore it is recommended that **Allegation C** be closed as **unsubstantiated**.

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